

[20 & 21 GEO. 5.] *Kingston upon Hull Corporation Act, 1930.* [Ch. clxxv.]



CHAPTER clxxv.

An Act to authorise the lord mayor aldermen and citizens of the city and county of Kingston upon Hull to construct street improvements and waterworks and to make further provision for the health local government and improvement of the city and for other purposes.

A.D. 1930.

[1st August 1930.]

WHEREAS it is expedient to empower the lord mayor aldermen and citizens of the city and county of Kingston upon Hull (in this Act called "the Corporation") to construct street improvements :

And whereas the Corporation are supplying water within and without the city and it is expedient to empower them to construct additional waterworks and to extend the periods limited by the Kingston upon Hull Corporation Act 1911 and the Kingston upon Hull Corporation Act 1922 for the construction of the waterworks authorised by those Acts respectively :

And whereas it is expedient to enlarge the powers of the Corporation in regard to the health local government and improvement of the city and to enact the other provisions contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

[Price 2s. Net.]

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— And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the purchase of lands for the purposes of this Act - - - - -	92,200
For the construction of the street improvements authorised by this Act -	8,380
For the execution of the powers of the section of this Act whereof the marginal note is "Power to develop lands" - - - - -	200,000
For the construction of the waterworks authorised by this Act - - - - -	727,411

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the east riding of Yorkshire and for the city and county of Kingston upon Hull which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short and collective titles.

1. This Act may be cited as the Kingston upon Hull Corporation Act 1930 and the Kingston upon Hull Corporation Acts 1854 to 1929 and this Act may be cited

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jointly as the Kingston upon Hull Corporation Acts 1854 A.D. 1930.
to 1930.

2. This Act is divided into Parts as follows (that is Division of
to say) :— Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Street improvements.

Part IV.—Waterworks.

Part V.—Infectious disease and sanitary
matters.

Part VI.—Finance.

Part VII.—Miscellaneous provisions.

3. The following Acts and parts of Acts (so far as Incorporation of Acts.
the same are applicable for the purposes and are not
inconsistent with the provisions of this Act) are hereby
incorporated with this Act (namely) :—

(1) The Lands Clauses Acts with the following
exception and modification—

(a) Sections 127 and 128 of the Lands
Clauses Consolidation Act 1845 (relating to
the sale of superfluous lands) are not incor-
porated with this Act :

(b) The bond required by section 85 of the
Lands Clauses Consolidation Act 1845 shall
be sufficient without the addition of the
sureties mentioned in that section :

(2) The Waterworks Clauses Act 1847 except—

(a) The words “ with the consent in writing
“ of the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44 of the Waterworks Clauses Act
1847 ;

(b) Sections 75 to 82 of the Waterworks
Clauses Act 1847 with respect to the amount
of profit to be received by the undertakers
when the waterworks are carried on for their
benefit and section 83 relating to accounts :

(3) Sections 13 to 21 of the Waterworks Clauses
Act 1863.

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Interpreta-
tion.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

- (i) “The Corporation” means the lord mayor aldermen and citizens of the city and county of Kingston upon Hull;
- (ii) “The city” means the city and county of Kingston upon Hull;
- (iii) “The council” means the council of the city;
- (iv) “The town clerk” and “the medical officer” mean respectively the town clerk and the medical officer of health of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices;
- (v) “The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city;
- (vi) “The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;
- (vii) “The tribunal” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- (viii) “The water limits” means the limits within which the Corporation are for the time being authorised to supply water;
- (ix) “Infectious disease” means (except where otherwise stated) any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the city;
- (x) “Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

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- (xi) "Child" means a person under the age of sixteen years; A.D. 1930.
- (xii) "Food" has the meaning assigned to it by section 34 (Definitions) of the Food and Drugs (Adulteration) Act 1928;
- (xiii) "Daily penalty" means a penalty for each day on which an offence is continued after conviction thereof;
- (xiv) "The Minister" means the Minister of Health;
- (xv) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (xvi) "The Act of 1901" "the Act of 1903" "the Act of 1906" "the Act of 1907" "the Act of 1911" "the Act of 1922" and "the Act of 1924" mean respectively the Kingston upon Hull Corporation Act 1901 the Kingston upon Hull Corporation Act 1903 the Kingston upon Hull Corporation Act 1906 the Kingston upon Hull Corporation Act 1907 the Kingston upon Hull Corporation Act 1911 the Kingston upon Hull Corporation Act 1922 and the Kingston upon Hull Corporation Act 1924.

PART II.

LANDS.

5. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works authorised by this Act and the Act of 1924 including the improvement and development of frontages or of the lands abutting on or adjacent to any street and for the protection against pollution of the pumping station authorised by this Act to be constructed at Kelleythorpe and any extension thereof or for other the purposes of this Act. Power to take lands.

6. The powers of the Corporation for the compulsory purchase of lands under the powers of this Part of this Act shall cease after the expiration of five years from the thirty-first day of October nineteen hundred and thirty. Period for compulsory purchase of lands.

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Compensa-
tion in case
of recently
created
interests.

7. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say) :—

(1) The tribunal shall not take into account any building erected or any improvement or alteration made or any interest in land created after the first day of November nineteen hundred and twenty-nine and before the date of the passing of this Act if in the opinion of the tribunal the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act :

(2) Subject as is hereinafter in this section provided the tribunal shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the tribunal materially enhances the value of such premises ; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act :

(3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after

receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month— A.D. 1930.
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(a) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said first day of November and before the date of the passing of this Act:

- (4) The Corporation shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

8. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Part of this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or of the widening or improvement of any existing street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly estimated and shall be set off against the said compensation or purchase money. Benefits to be set off against compensation.

9. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing to the occupier enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purposes of surveying and valuing the said lands and buildings without being deemed Power to enter upon property for survey and valuation.

A.D. 1930. — trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Power to
reinstate
owners of
property.

10. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act or which may be in the neighbourhood of any of the works authorised by this Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Power to
develop
lands.

11.—(1) The Corporation may lay out and develop any lands acquired by them under the powers of this Act or the Act of 1924 for the purposes of street improvements (including lands acquired for the improvement and development of frontages or of any lands abutting on or adjacent to any street) and not required for the purposes of the street improvements authorised by those Acts and (with the consent of the Minister) any other lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected

thereon and as to the use to which such buildings may be put. A.D. 1930.

(4) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies at a price or rent or for a consideration of a value less than the current market value of such lands but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(5) Nothing in this section shall be taken to dispense with the necessity for obtaining the approval of the Minister or the Board of Education (as the case may be) to any alienation sale lease appropriation or other disposition of any lands acquired under any general Act for which such approval would be required but for the provisions of this section.

PART III.

STREET IMPROVEMENTS.

12.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvements hereinafter referred to together with all necessary approaches junctions abutments embankments arches steps sewers drains culverts works and conveniences connected therewith or incidental thereto. Power to make street improvements.

(2) The street improvements hereinbefore referred to will be situate in the city and are—

Work No. 1 A widening and improvement of Holderness Road on the south-east side thereof;

Work No. 3 A new street in continuation of Lowther Street in a straight line in an easterly direction to Paisley Street;

Work No. 4 A widening and improvement of Brook Street on the west side thereof;

Work No. 5 A widening and improvement of Collier Street on the north side thereof and of Moxon Street on the east side thereof.

13. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any Limits of deviation for street

A.D. 1930. extent not exceeding the limits of deviation shown on
improve- those plans and from the levels thereof as shown on the
ments. deposited sections to any extent not exceeding five feet
either upwards or downwards.

PART IV.

WATERWORKS.

Construc- 14. Subject to the provisions of this Act the
tion of Corporation may make and maintain in the lines and
waterworks. situations and according to the levels shown upon the
deposited plans and sections the following works situate
in the east riding of Yorkshire (that is to say) :—

Waterwork No. 1 A pumping station together with
a well or wells bores adits headings and other
works and conveniences to be situate at Kelley-
thorpe in the parish of Elmswell with Little
Driffield and Kelleythorpe in the rural district
of Driffield and in the urban district of Driffield
in the fields adjacent to and on the north side of
the Driffield and Eastburn road and numbered
182 and 202 on the $\frac{1}{2500}$ Ordnance map (edition
1927) of the said parish ;

Waterwork No. 2 A conduit comprising one or more
lines of pipes in the parishes of Elmswell with
Little Driffield and Kelleythorpe Sunderland-
wick Hutton Cranswick and Watton in the rural
district of Driffield and in the parishes of
Kilnwick Beswick Lockington Scarborough
Leconfield Cherry Burton Molescroft Bishop
Burton Walkington Rowley and Skidby in the
rural district of Beverley and in the urban
district of Cottingham commencing at Water-
work No. 1 and terminating at or near to the
junction of Millhouse Woods Lane and North-
gate Cottingham ;

Waterwork No. 3 The enlargement of Keldgate
service reservoir in the urban district of Cotting-
ham in the field adjacent to and on the south
side of the Cottingham and Skidby road and
numbered 140 on the $\frac{1}{2500}$ Ordnance map
(edition 1927) of the said urban district.

15. In the construction of the works authorised by this Part of this Act the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards :

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 —
 Power to deviate.

Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade :

Provided also that except for the purposes of crossing over a stream or railway no part of the conduits authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

16.—(1) If the works authorised by this Part of this Act and shown on the deposited plans and sections or any part or parts thereof are not completed within ten years from the thirty-first day of October nineteen hundred and thirty then on the expiration of that period the powers granted by this Part of this Act for making those works shall cease as to such of them or so much thereof respectively as are not then completed.

Period for completion of water-works.

(2) Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of the works and lay down additional lines of pipes as and when occasion may require.

17.—(1) The Corporation and the trustees and commissioners for putting into execution the Acts 4 George III chapter 47 6 George III chapter 74 and 2 William IV chapter 1 or other the body or persons in whom the drains mentioned in this section are vested or who are empowered to maintain the same may enter into and carry into effect agreements in reference to the taking by the Corporation of water from the Holderness Drain and from other drains of such trustees commissioners body or persons and the execution of such works as may be necessary for that purpose and subject to any such agreement the Corporation may take water accordingly for the purposes of their water undertaking and for the supply of water for trade and other purposes :

As to taking of water from Holderness Drain.

A.D. 1930.

Provided that nothing in this section shall prejudice or affect the right of the said trustees commissioners body or persons in their uncontrolled discretion to decline to enter into any agreement under this section.

(2) No connection shall be made between the mains for the supply of water taken under this section and the mains for the supply of water used for the purposes of drinking or the preparation or cooking of food.

Works to
form part
of water
under-
taking.

18. Subject to the provisions of this Act the works to be constructed by the Corporation under the authority of this Part of this Act shall for all purposes be deemed to be part of the water undertaking of the Corporation.

Extension
of time for
construction
of water-
works.

19. The period limited by section 16 (Period for completion of waterworks) of the Act of 1911 for the completion of Work No. 1 authorised by Part III (Water) of that Act as extended by orders made in pursuance of the Special Acts (Extension of Time) Act 1915 and section 12 (Extension of time for construction of waterworks) of the Act of 1922 and the period limited by section 15 (Period for completion of waterworks) of the Act of 1922 for the completion of Works Nos. 11 and 13 authorised by Part IV (Water) of that Act shall be deemed to have continued until the passing of this Act and are hereby further extended to the thirty-first day of December nineteen hundred and thirty-one.

Supply in
bulk to
Beverley
Corporation.

20.—(1) If at any time the mayor aldermen and burgesses of the borough of Beverley (in this section referred to as “the Beverley Corporation”) shall by notice in writing to the Corporation require a supply of water in bulk the Corporation shall subject to the provisions of this section and as from a date to be mentioned in the notice and not being earlier than the date of the completion of the pumping station (Waterwork No. 1) and of the conduit (Waterwork No. 2) authorised by this Act and of the commencement of a regular supply of water therefrom to the city and during such period as the city is supplied with water from the pumping station supply to the Beverley Corporation at the price of one shilling and threepence per one thousand gallons such quantity of water not being more than two hundred thousand gallons a day as may be required by the Beverley Corporation and stated in the said notice and the Beverley Corporation shall pay at the said price for

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the quantity of water stated in the notice whether they A.D. 1930.
take it or not :

Provided that the giving and taking of such supply may at any time be terminated and after termination renewed and the quantity of water required varied on receipt by the Corporation of notice in writing from the Beverley Corporation of not less than forty-eight hours in the case of either termination or of renewal.

(2) Any water to be supplied and taken under this section shall be supplied and taken at the pressure available by gravitation at or near the point (in this section referred to as "the point of supply") on the said conduit (Waterwork No. 2) where the same crosses the public highway leading from Beverley to Walkington by means of a main to be constructed by the Beverley Corporation at their own expense between the point of supply and such of the waterworks of the Beverley Corporation as the Beverley Corporation may determine.

The said main shall be constructed and maintained by the Beverley Corporation to the reasonable satisfaction of the Corporation and in accordance with plans and sections reasonably approved by them and the connection between such main and the said conduit shall be effected by the Corporation at the reasonable expense of the Beverley Corporation.

(3) All water so supplied and taken shall be measured by means of a meter which shall be installed by the Corporation at some point near to the said conduit to be agreed between the Corporation and the Beverley Corporation or (in default of agreement) determined under this section and be placed in some suitable chamber or building to be provided and maintained by the Beverley Corporation and such meter and all valves and other apparatus connecting the same with the main to be constructed by the Beverley Corporation as aforesaid shall be provided fixed constructed maintained and controlled by the Corporation. The Beverley Corporation shall bear the cost of fixing and maintaining such meter and other apparatus as aforesaid and shall pay an annual rent for the meter according to the scale of meter rents for the time being in force within the city and shall at all reasonable times be at liberty on giving twenty-four hours' notice to the Corporation to inspect such meter and

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A.D. 1930. the works appertaining thereto and to test the accuracy thereof.

(4) The register of the meter shall be prima facie evidence of the quantity of water supplied by the Corporation through such meter.

(5) The Corporation shall not be liable for any damage loss or expense caused by any failure in the supply of water to the Beverley Corporation if such failure be occasioned by frost or any other unavoidable cause or accident or during necessary repairs.

(6) All accounts for water supplied and for the meter rent shall be furnished quarterly and made up to the last days of March June September and December in every year and become due for payment within one month after receipt and interest at the rate of five per centum per annum shall be paid on overdue accounts.

(7) If and so long as and to the extent that (upon the basis of taking into account the yield of all the effective sources of supply of water for the time being used by the Corporation) any supply of water by the Corporation to the Beverley Corporation under the provisions of this section would interfere with the supply of water for domestic purposes (whether the same be taken by meter or otherwise) by the Corporation to consumers within the water limits the Corporation shall be entitled to withhold or suspend wholly or partly the supply of water to the Beverley Corporation under this section but save as aforesaid the supply of water by the Corporation for any other purpose than as aforesaid shall not have priority over such last mentioned supply.

(8) Any difference between the Corporation and the Beverley Corporation under this section shall be determined by an engineer to be appointed (failing agreement) on the application either of the Corporation or of the Beverley Corporation (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any such determination.

For protec-
tion of
Beverley
Corporation.

21. The following provisions for the protection of the mayor aldermen and burgesses of the borough of Beverley (in this section called "the Beverley Corpora-

tion ") shall unless otherwise agreed between the Corpora- A.D. 1930.
tion and the Beverley Corporation have effect (that is to —
say) :—

The Corporation shall not oppose any application which the Beverley Corporation may at any time hereafter make to Parliament or other competent authority for powers with respect to the sinking and construction of any well and pumping station situate to the north of an imaginary straight line drawn due east and west through the northern tower of Beverley Minster and not less distant than five miles from the pumping station (Waterwork No. 1) by this Act authorised.

22. The following provision shall apply and have effect for the protection of the mayor aldermen and burgesses of the borough of Bridlington (in this section referred to as "the Bridlington Corporation ") unless otherwise agreed between the Corporation and the Bridlington Corporation (that is to say) :—

For protec-
tion of
Bridlington
Corporation.

If the Bridlington Corporation for the purpose of obtaining a supply of water shall at any time construct a pumping station together with wells bores adits and other works and conveniences or shall make application to Parliament or other competent authority for powers to do so the Corporation shall not object to the construction of the said works or oppose any application for powers in respect thereof if the site of such pumping station—

(a) is proposed to be situate more than five-and-a-half miles from the site of the pumping station (Waterwork No. 1) authorised by this Act and shown on the deposited plans ; and

(b) will not be west of a straight line drawn due north and south through the site of the said pumping station (Waterwork No. 1) authorised by this Act such line to terminate at the points where it meets the northerly and southerly boundaries of the rural district of Driffeld as constituted at the passing of this Act.

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For protec-
tion of
Cottingham
Urban
District
Council.

23.—(1) For the purposes of the Kingston upon Hull Corporation Act 1897 the Act of 1911 and the Act of 1922 the provisions of section 99 (Corporation to supply water to Cottingham Urban District Council) of the Kingston upon Hull Corporation Act 1897 (in this section referred to as “the said section”) shall unless otherwise agreed in writing between the Corporation and the Cottingham Urban District Council (in this section referred to as “the council”) remain and have effect for the protection of the council subject to the following amendments (that is to say):—

- (a) In subsection (1) of the said section there shall be substituted for the words “and there shall
“be an adequate yield therefrom supply water
“through such connection to the Cottingham
“Urban District Council gratuitously in such
“quantity as the said council shall from time to
“time require not exceeding in any one day
“fifty thousand gallons” the words “and the
“waterworks at Cottingham authorised by the
“Kingston upon Hull Corporation Acts 1911 and
“1922 or any of such works and there shall be
“an adequate yield therefrom supply to the said
“council through such connection or such con-
“nection or connections in Cottingham afore-
“said as may be agreed upon gratuitously water
“in such quantity as the said council shall from
“time to time require not exceeding three hundred
“and fifty thousand gallons in any one week”:

Provided that—

(i) If the said works authorised by the Kingston upon Hull Corporation Water Act 1884 and by the said Acts of 1911 and 1922 shall all be closed down temporarily but shall not be definitely abandoned by the Corporation and the waterworks authorised by this Act shall be in use and there shall be an adequate yield therefrom the Corporation shall continue to supply gratuitously to the council as mentioned in the said section such quantity of water not exceeding three hundred and fifty thousand gallons in any one week as aforesaid; and

(ii) If the said works authorised by the said Act of 1884 and the said Acts of 1911 and 1922 shall be closed down permanently or definitely abandoned by the Corporation the Corporation so long as they shall use the said works authorised by this Act and there shall be an adequate yield therefrom shall continue to supply as mentioned in the said section such quantity of water not exceeding three hundred and fifty thousand gallons in any one week as aforesaid to the council but the council shall pay to the Corporation therefor such reasonable price per thousand gallons as shall failing agreement be settled by arbitration and in arriving at such reasonable price regard shall be had to all the circumstances (including circumstances now or then past) connected with the supply of water by the Corporation to the council; A.D. 1930.

(b) Subsection (4) of the said section is hereby repealed.

(2) The following further provisions shall unless otherwise agreed in writing between the Corporation and the council apply and have effect for the protection of the council and shall be deemed to have had effect as from the thirty-first day of March nineteen hundred and thirty (that is to say) :—

(a) If at any time after the last mentioned date the council have required or if at any time hereafter they shall require a supply of water in excess of the hereinbefore mentioned quantity of three hundred and fifty thousand gallons in any one week the Corporation shall so long as there is an adequate yield of water from the said works authorised by the said Act of 1884 and by the said Acts of 1911 and 1922 and by this Act or from any one or more of such works supply to the council as aforesaid such additional quantity of water as the council may require on the following terms :—

(i) For any such additional quantity of water up to and not exceeding four hundred

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and twenty thousand gallons in any one week at fivepence per thousand gallons; and

(ii) For any further quantity of water in excess of four hundred and twenty thousand gallons in any one week at sixpence per thousand gallons;

(b) The Corporation shall as soon as may be after the thirty-first day of March in every year forward to the council a certificate in writing under the hand of the water engineer of the Corporation setting out the average cost per one thousand gallons of pumping water at the said works authorised by the said Act of 1884 and the said Acts of 1911 and 1922 and this Act or such one or more of such works as the Corporation may be using for the yearly period ending thirty-first day of March in every year and the above-mentioned sums of fivepence and sixpence per one thousand gallons respectively shall be subject to variation by way of increase or decrease proportionately as the average cost per thousand gallons of pumping water as aforesaid is in excess of or below the figure of fivepence but so that the above-mentioned sum of sixpence per thousand gallons or such variation thereof shall always be one penny in excess of the above-mentioned sum of fivepence per thousand gallons or such variation thereof:

Provided that in calculating the said average cost per thousand gallons of pumping water any fraction of one halfpenny which is less than one farthing shall be disregarded and any fraction of one halfpenny which is equal to or more than one farthing shall be regarded as one halfpenny.

(3) In this section and in the said section 99 as amended by this section the expression "week" means a period of seven days beginning at the beginning of Sunday.

Provision
where local
wells
affected.

24.—(1) If the operations of the Corporation in connection with the construction or use of Waterwork No. 1 authorised by this Act (in this section called "the

pumping station") shall cause any diminution of the supply of water derived from any well borehole spring or watering place existing at the date of the passing of this Act as an effective source of supply in regular use such well borehole spring or watering place being situate within the protected area the Corporation shall upon the written request of the owner of such well borehole spring or watering place (in this section called "the owner" which term shall include any lessee or occupier and any authority or body of persons having the control or management of a water supply) or upon the written request (if they think fit to take action in the matter) of the urban district council of Great Driffield or of the rural district council of Driffield (both or either of whom are in relation to their respective districts in this section referred to as "the council") deepen the affected well borehole spring or watering place or make such borings therein or headings therefrom as will increase the supply therefrom so as to make good the diminution and shall at their own cost make any necessary and consequential alterations in the pumps and machinery used in connection with any such well borehole spring or watering place or (where such appliances do not exist) shall provide such apparatus as may reasonably be required for the purpose of abstracting water from such well borehole spring or watering place.

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(2) If such diminution takes place after the Corporation shall have commenced the construction of the pumping station it shall be assumed unless otherwise shown that the diminution has been caused by the operations of the Corporation at the said station.

(3) The Corporation may if they think fit at their option in lieu of increasing any supply from a well borehole spring or watering place under this section—

(a) make compensation in money to the owner for such diminution; or

(b) afford to the owner a supply of water equal to the amount of such diminution at such cost or rate (if any) as that the total cost to the owner of obtaining his full supply shall be the same (as nearly as may be) after as before the construction of the pumping station and upon such terms as may be agreed between the owner and the Corporation or (if the owner is

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willing that the council should act on his behalf) between the council and the Corporation or failing agreement as may be settled by arbitration :

Provided that if the Corporation determine to afford a supply of water under paragraph (b) of this subsection they shall not be liable for a failure to afford such supply which is due to frost unusual drought or other unavoidable cause or accident.

(4) For the purpose of affording a supply of water under this section the Corporation may supply water beyond their limits of supply and carry out all works necessary for that purpose but in respect of any such supply within the limits for the time being of the Driffield Water Company other than the village of Nafferton the exercise of the powers of this subsection shall be subject to the consent of the said company.

(5) The Corporation shall make compensation for any injury sustained by the owner consequent upon or incidental to the exercise by the Corporation of the powers conferred by subsection (1) of this section and for any increased expenditure reasonably incurred by the owner in operating any pumps or machinery which may be altered by the Corporation under the powers of that subsection the amount of such compensation to be settled in case of difference by arbitration.

(6) The owner shall without making any charge therefor give to the Corporation their agents and servants access to his premises and every facility for carrying out such deepenings borings or headings and executing any works necessary for the purposes of this section.

(7) (a) The owner shall afford the officers servants and other representatives of the Corporation at all reasonable times after the passing of this Act access to the well borehole spring or watering place in respect of which any claim is or may be made under this section for the purpose of ascertaining particulars thereof and the levels of the water therein.

(b) When the Corporation have ascertained any such particulars and levels they may send a memorandum thereof by post in a registered letter addressed with a

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sufficient direction to the owner at his usual place of abode and if the owner shall not within one month after such letter has been so sent give notice in writing to the Corporation that he does not accept such particulars and levels as correct he shall be deemed to have agreed that they are correct. A.D. 1930.

(8) The Corporation shall not be liable in respect of any claim made by the owner under this section if after a reasonable request in writing by the Corporation he refuses to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the well borehole spring or watering place in respect of which the claim is made for the purpose of ascertaining particulars thereof the levels of the water therein and otherwise for the purposes of this section.

(9) In this section "the protected area" means the urban district of Great Driffeld as constituted at the passing of this Act and so much of the rural district of Driffeld as is situate within a radius of two and a half miles from the centre of the main well at the pumping station and for the purposes of this section the wells shown on the maps signed in duplicate by Walter Duckworth Bingham on behalf of the Corporation and by Reginald Bernard Tollett on behalf of the rural district council of Driffeld and thereon coloured blue shall be deemed to be within that radius.

(10) Any question or dispute arising under this section shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

(11) The provisions of this section shall not apply to the Driffeld Water Company or to the London and North Eastern Railway Company or any well borehole spring or watering place belonging to them or used by them for the supply of water.

(12) The council shall be entitled and they are hereby empowered to act on behalf of the owner of any well borehole spring or watering place within their

A.D. 1930. — district and may proceed on such owner's behalf under this section as if they were themselves the owners of such well borehole spring or watering place and for that purpose the urban district council of Great Driffield may apply their funds as if the expenses incurred by them were expenses to which section 207 of the Public Health Act 1875 applies and the rural district council of Driffield may apply their funds as if the expenses incurred by them were expenses to which section 229 of the Public Health Act 1875 applies.

Supply in
bulk to
Great
Driffield.

25. If the urban district council of Great Driffield shall at any time undertake the distribution of water within their district the Corporation if so required shall supply water in bulk to the said council at the cost of pumping at Waterwork No. 1 authorised by this Act or at the cost which may be agreed upon with the East Riding County Council in respect of water supplies to local authorities in their county whichever may be the greater such supply to be delivered at such point as may be agreed or determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference :

Provided that if the supply is given from any point other than the said Waterwork No. 1 the said urban district council shall pay to the Corporation such a sum as may be agreed or as in default of agreement may be determined by an arbitrator appointed as aforesaid for the use of any mains pipes or other works of the Corporation between the said pumping station and the point of supply.

For protec-
tion of
Driffield
Water
Company.

26. The following provisions for the protection and benefit of the Driffield Water Company their successors and assigns (in this section referred to as "the company") shall except so far as may be otherwise agreed in writing between the company and the Corporation apply and have effect (that is to say):—

- (1) If the operations of the Corporation at Waterwork No. 1 authorised by this Act (in this section called "the pumping station") shall cause any diminution of the supply of water

derived by the company from their wells situate at Spellowgate or the Town Bore in the urban district of Great Driffeld the Corporation at their option shall upon the written request of the company either—

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—

(a) effect at their own cost such alterations in the company's wells by deepening the same or otherwise so as to make good the diminution; or

(b) supply the company with such quantity of water in bulk as may be required to make good the diminution:

- (2) In the event of the Corporation effecting alterations in the company's wells under paragraph (a) of subsection (1) of this section the Corporation shall instal any necessary pumps and machinery to enable water to be obtained from the altered or improved source of supply and shall pay to the company an amount equal to the increase (if any) in the cost of pumping water:
- (3) Any alterations necessary to the pumps and machinery or the installation of new pumps and machinery under subsection (2) of this section shall be carried into effect in accordance with plans and sections to be reasonably approved by the company:
- (4) If such diminution takes place after the Corporation have commenced the construction of the pumping station it shall be assumed unless otherwise shown that the diminution has been caused by the operations of the Corporation at the said station:
- (5) In the event of the Corporation supplying the company with water in bulk under paragraph (b) of subsection (1) of this section the supply shall be delivered into the Company's mains at the nearest suitable point and at a suitable and proper pressure and otherwise subject to such terms and conditions as may be agreed between the Corporation and the company or as may be determined by arbitration and the terms upon which water shall be supplied

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shall provide for the payment by the company to the Corporation of a sum equivalent to the cost which would have been incurred by the company at such time in obtaining and supplying the same quantity of water from their wells :

- (6) The Corporation shall not be liable for a failure to supply water under the said paragraph (b) if such failure is due to frost unusual drought or other unavoidable cause or accident :
- (7) The Corporation shall make compensation in money for any injury caused to the company by the exercise by the Corporation of the powers conferred by subsection (1) of this section including compensation in respect of any standing charges and other expenses incurred by the company during such time as their wells at Spellowgate or the Town Bore are not fully utilised in consequence of a supply in bulk being afforded to the company under paragraph (b) of subsection (1) of this section the amount of such compensation to be settled in case of difference by arbitration :
- (8) The company shall without making any charge therefor give to the Corporation their agents and servants access to their premises and every facility for effecting the alterations and executing any works necessary for the purposes of this section :
- (9) (a) The company shall afford the officers servants and other representatives of the Corporation at all reasonable times after the passing of this Act access to their well and the works connected therewith for the purpose of ascertaining particulars thereof and the levels of the water therein ;
(b) When the Corporation have ascertained any such particulars and levels they may send a memorandum thereof by post in a registered letter addressed with a sufficient direction to the company and if the company shall not within one month after such letter has been so sent give notice in writing to the Corporation

that they do not accept such particulars and levels as correct they shall be deemed to have agreed that they are correct : A.D. 1930.
—

- (10) Any question or dispute arising under this section shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such reference.

27. The following provisions for the protection and benefit of the Commissioners of the Driffeld Navigation (in this section referred to as "the commissioners") shall except so far as may be otherwise agreed in writing between the commissioners and the Corporation apply and have effect (that is to say) :— For protec-
tion of
Driffeld
Navigation.

- (1) If at any time after the Corporation have commenced operations at the pumping station (Waterwork No. 1) authorised by this Act (in this section referred to as "the pumping station") such operations shall cause any diminution in the quantity of water in the commissioners' canal (in this section referred to as "the canal") the Corporation shall deliver into the canal at the head thereof free of cost to the commissioners such quantity of water as will make good the diminution :

Provided that the Corporation shall be under no obligation to supply more water than is necessary with the flow from any natural sources to maintain the navigation upon the canal when the locks lock gates and banks of the canal are maintained in a reasonable state of repair :

- (2) If any diminution takes place in the quantity of water in the canal within two and a half miles from the centre of the main well of the pumping station after the Corporation shall have commenced the construction of the pumping station it shall be assumed unless otherwise shown that the diminution has been caused by the operations of the Corporation at the pumping station :

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(3) (a) At any time after the passing of this Act the Corporation shall be entitled to inspect the works of the commissioners and place such gauges and make such observations as they may consider necessary for the purpose of ascertaining the quantity of water flowing into the canal and of ascertaining the condition of the commissioners' undertaking for the purposes of this section and the commissioners shall give to the Corporation their officers servants and other representatives reasonable facilities for these purposes ;

(b) The Corporation shall not be under obligation to supply water under this section if after reasonable request in writing by the Corporation the commissioners refuse to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to their works for the purposes of this subsection and reasonable facilities as aforesaid :

(4) For the purpose of affording a supply of water under this section the Corporation may supply water beyond their limits and carry out all works necessary for that purpose and the commissioners shall without making any charge therefor give to the Corporation their agents and servants access to their premises and all reasonable facilities for carrying out such works necessary for the purposes of this section :

(5) Any question or dispute arising under this section shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of E. B.
Bradshaw
& Sons
Limited.

28. The following provisions for the protection and benefit of E. B. Bradshaw & Sons Limited their successors and assigns (in this section referred to as " the company ") shall except so far as may be otherwise agreed between

the company and the Corporation apply and have effect A.D. 1930.
(that is to say) :—

(1) If at any time after the Corporation shall have commenced operations at the pumping station (Waterwork No. 1) authorised by this Act (in this section referred to as "the pumping station") it is shown that the effect of such operations has been injuriously to affect the company by reducing the supply of water used by the company for working their mill known as the "Bell Mills" in the rural district of Driffeld the Corporation shall pay compensation to the company in respect of such injurious affection :

(2) If at any time after the Corporation shall have commenced operations at the pumping station the effect thereof has been to reduce the flow of water in the stream known as the West Beck where it passes through the company's lands to such an extent as to injure the company's fishing rights in respect of that stream the Corporation shall at their option either—

(a) cause to be discharged into the said stream such quantity of water as may be required to make good the injury; or

(b) pay compensation to the company in respect thereof :

Provided that—

(i) if the Corporation determine to discharge water into the stream under paragraph (a) of this subsection they shall not be liable under that paragraph for a failure to discharge the same which is due to frost unusual drought or other unavoidable cause or accident;

(ii) the amount of any compensation payable under paragraph (b) of this subsection shall be determined upon the basis that the annual value of the said fishing rights is fifty pounds :

(3) If the reduction in the flow of water referred to in subsections (1) and (2) of this section commences after the Corporation shall have commenced the construction of the pumping

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station it shall be assumed unless otherwise shown that such reduction has been caused by the operations of the Corporation at the said pumping station :

- (4) (a) The company shall afford the officers servants and other representatives of the Corporation at all reasonable times after the passing of this Act access to the said stream for the purpose of ascertaining particulars of the quantity of water flowing therein and the levels thereof and also access to the Bell Mills for the purpose of inspecting the same ;

(b) When the Corporation have ascertained any such particulars or information under this subsection they may send a memorandum thereof by post in a registered letter addressed to the company at their registered office and if the company shall not within one month after such letter has been so sent give notice in writing to the Corporation that they do not accept such particulars or information as correct they shall be deemed to have agreed that they are correct :

- (5) The Corporation shall not be liable in respect of any claim made by the company under this section if after a reasonable notice in writing by the Corporation the company refuse to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the said stream and mill in accordance with and for the purposes of this section :

- (6) The amount of compensation (if any) to be paid by the Corporation to the company under the provisions of this section or any other question or dispute arising under this section shall in default of agreement be referred to and determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

[20 & 21 GEO. 5.] *Kingston upon Hull* [Ch. clxxv.]
Corporation Act, 1930.

29. For the protection of the Southburn Estates and the Tibthorpe Estates and their respective successors and assigns (in this section severally referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the Corporation and the owner apply and have effect (that is to say):—

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For protection of Southburn Estates and Tibthorpe Estates.

- (1) If during the construction of Waterwork No. 1 by this Act authorised or at any time after the completion thereof or the commencement of the pumping of water therefrom or thereat the supply of water in any well or borehole of the owner existing at the date of the passing of this Act and situate within a distance of two and a half miles from the main well of the pumping station comprised in the said work or in the boreholes of the Southburn Estates situate in or supplying the three fields known as the West Fields and numbered respectively 97 98 and 99 on the $\frac{1}{2500}$ Ordnance map (edition of 1910) Yorkshire East Riding sheets 178/1 and 178/2 shall be diminished by or in consequence of such construction or by or in consequence of the pumping of water during such construction or from or at the said pumping station when completed the Corporation shall at their option if so required by notice in writing by the owner and as soon as practicable after the receipt of such notice either—

(a) deepen such well or borehole or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and supply and erect all necessary pumps engines and apparatus; or

(b) commence to give and at all times thereafter continue to give to the owner free of charge other than a charge equal to the present average cost (if any) incurred by the owner in obtaining a supply of water at or as near as practicable to such well or borehole a supply of water equivalent to the amount by which such supply shall have been diminished and lay down and thereafter maintain and renew such pipes works

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and apparatus as may be necessary for giving such supply :

- (2) If at any time after the making of any such deepening boring or heading as is referred to in paragraph (a) of subsection (1) of this section the cost to the owner of obtaining or continuing to obtain a supply of water from the well or borehole with reference to which such work was executed is increased by reason of the construction of the pumping station the Corporation shall from time to time pay to the owner the amount of such increase :
- (3) The Corporation shall pay to the owner full compensation for all loss damage or injury which the owner shall suffer by reason or in consequence of any such diminution in supply as aforesaid during the period between the date of the commencement of such diminution and the date of the making good thereof :
- (4) For the purpose of affording a supply of water under this section the Corporation may supply water beyond their limits of supply and carry out all works necessary for that purpose :
- (5) If during the construction of the said Water-work No. 1 or at any time after the completion thereof or the commencement of the pumping of water from or at the said pumping station the flow of water in any part of the Eastburn Beck or the Southburn Beck situate within a distance of two and a half miles from the main well of the said pumping station shall be diminished by reason or in consequence of such construction or by reason or in consequence of the pumping of water during such construction or from or at the said pumping station when completed the Corporation shall pay to the owner full compensation for any loss damage or injury in respect of rights or facilities of drainage or of fishing or of watering cattle or other animals which he may suffer by reason or in consequence of such diminution :
- (6) The amount of any compensation to be paid by the Corporation to the owner or the amount of any charge for water to be paid by the

owner to the Corporation under the provisions of this section shall failing agreement between them be determined by arbitration as hereinafter provided :—

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- (7) The owner shall without making any charge therefor afford to the Corporation all reasonable facilities for—

(a) deepening wells or boreholes or making borings or headings pursuant to paragraph (a) of subsection (1) of this section; or

(b) laying down maintaining and renewing pipes works or apparatus pursuant to paragraph (b) of the said subsection (1); or

(c) gauging or measuring the flow of water in the said streams or the level of water in wells or boreholes of the owner;

and the Corporation shall be entitled to make such inspections as may be reasonably necessary for any such purpose as is referred to in the foregoing paragraph (c) and shall when requested by the owner so to do furnish to the owner free of cost information as to the result of such inspections gaugings and measurings :

- (8) Any such diminution in supply or in the flow of water as is referred to in subsection (1) or in subsection (5) of this section shall unless and until the contrary be proved by the Corporation be deemed to have been caused by or in consequence of the construction of the said Waterwork No. 1 or the pumping of water during such construction or from or at the said pumping station :

- (9) If any difference shall arise under this section between the Corporation and the owner such difference shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the owner or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination :

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- (10) The provisions of the section of this Act whereof the marginal note is "Provision where local wells affected" shall not apply to the lands of the owner.

For protec-
tion of
Major C. E.
Reynard.

30. The following provisions for the protection and benefit of Claude Edward Reynard or other the estate owner for the time being of the property situate at Sunderlandwick in the urban and rural districts of Great Driffeld of which the said Claude Edward Reynard is now estate owner (in this section referred to as "the owner") shall except so far as may be otherwise agreed in writing between the owner and the Corporation apply and have effect (that is to say) :—

- (1) If at any time after the Corporation have commenced to construct the pumping station (Waterwork No. 1) authorised by this Act (in this section referred to as "the pumping station") and whether before or after the bringing into use of the pumping station the effect of the execution of the works of the Corporation or of the pumping of water by the Corporation is to reduce the supply of water available for working the mill of the owner known as "the Poundsworth Mill" in the parish of Sunderlandwick below the quantity required for such working then unless water is discharged into the stream in pursuance of subsection (2) of this section sufficient to counteract the effect of such reduction the Corporation shall pay to the owner such reasonable sums as may be agreed or as failing agreement may be determined by arbitration—

(a) to be required to enable him to instal at such mill such machinery as may be necessary to provide substituted or supplementary power for working the mill so that it may be as effective as it was before such reduction took place; and

(b) to represent the capitalised amount of the cost of working such machinery and of depreciation on such machinery :

- (2) If at any time after the Corporation have commenced to construct the pumping station

and whether before or after the bringing into use of the pumping station the effect of the execution of the works of the Corporation or of the pumping of water by the Corporation is to reduce the water in so much of the Driffeld Trout Stream and the Driffeld Beck as is referred to in subsection (3) of this section to such an extent as materially to injure or depreciate the value of the owner's fishing rights in the said stream or beck the Corporation shall at their option either—

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—

(a) cause to be discharged into the said stream and beck or either of them at such point or points as may be agreed or determined by arbitration such quantity of water as may be required to make good such injury or depreciation in value; or

(b) purchase the said fishing rights of the owner at such price as may be agreed or as may be determined by arbitration :

Provided that—

- (i) The price to be paid for such fishing rights shall be determined upon the basis that the annual value thereof does not exceed two hundred pounds; and
 - (ii) Notwithstanding the purchase of the said fishing rights the occupier for the time being of the house known as "Sunderlandwick" and the members of his family and any personal friends accompanied by him or by any member of his family shall be permitted to fish in the said stream and beck but the Corporation shall be under no obligation to maintain the said stream or beck for the purposes of fishing :
- (3) In this section the expression "fishing rights" means the right with rod and line and natural or artificial fly bait only to fish for capture and take away all fish in so much of the Driffeld Trout Stream as lies between the existing western extremity of the owner's property on the said stream (near Hunting Bridge) and the

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Hull and Scarborough railway line and so much of the Driffeld Beck as lies between the railway line from Great Driffeld to Southburn and the junction of the said beck with the said stream but as regards those portions of such stream and beck respectively where the owner only owns one bank the rights shall extend to one-half only of such stream and beck respectively together also with the right for the owner of the fishing rights and others with the consent of such owner to pass and re-pass along the banks of the said stream and beck within the limits aforesaid and also right of access from the Beverley Road along the private road of the owner leading to Poundsworth Mill and Poundsworth Farm with the right to pass and re-pass along the same Subject nevertheless and without prejudice to all then existing rights and privileges of the agricultural tenant or tenants of the owner and all other then existing rights and privileges if any on or over the said banks or on or over the said stream and beck not being in either case rights or privileges which would prevent or impede the exercise by the Corporation and by others with their consent of the fishing rights hereinbefore mentioned Except and always reserving to the owner all rights in connection with the said Poundsworth Mill and the sluices aqueducts and other works used in connection therewith including the right to raise and lower the level of the water and also except and reserving unto the owner all water rights in connection with any other mill power house or other building which he may at any time erect in the place of the existing mill :

- (4) Any diminution of the supply of water available for working the said mill or of the water in the said Driffeld Trout Stream or Driffeld Beck occurring after the commencement of the construction of the pumping station shall unless the contrary be proved by the Corporation be deemed to have been caused by the execution of works or the pumping of water by the Corporation :

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(5) For the purpose of affording a supply of water under this section the Corporation may supply water beyond their limits of supply and carry out all works necessary for that purpose but in respect of any such supply within the limits for the time being of the Driffeld Water Company the exercise of the powers of this subsection shall be subject to the consent of the said Company :

(6) The provisions of subsection (3) of the section of this Act of which the marginal note is "Provision where local wells affected" shall in relation to the owner have effect subject to the modification that the option by paragraph (a) of that subsection given to the Corporation of making compensation in money shall not be exerciseable if it is reasonably practicable for them having regard to all the circumstances of the case (including the cost to be incurred in so doing) to comply with the provisions either of subsection (1) of that section or of the said subsection (3) excluding the said paragraph (a) :

(7) The Corporation shall pay to the owner compensation for all loss damage or injury which the owner shall suffer by reason or in consequence of any such reduction as is referred to in subsection (1) or subsection (2) of this section or any diminution of the supply of water derived from any well borehole spring or watering place of the owner situate or deemed to be situate within the protected area referred to in the said section of this Act of which the marginal note is "Provision where local wells affected" between the date of the commencement of such diminution and the date of the making good thereof :

(8) Any question which may arise between the owner and the Corporation under this section shall be determined by an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

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For protec-
tion of East
Riding
County
Council.

31. For the protection of the county council of the east riding of Yorkshire (in this section referred to as "the county council") the following provisions shall unless otherwise agreed in writing between the county council and the Corporation apply and have effect (that is to say):—

(1) If at any time the county council shall by notice in writing require the Corporation to supply to them water in bulk the Corporation shall subject to and in accordance with the provisions of this section and as from a date to be specified in the notice not being earlier than—

(a) six months from the date of the notice;
or

(b) the date of the bringing into use of Waterwork No. 1 by this Act authorised (in this section referred to as "the pumping station") as an effective source of supply;

whichever shall be the later supply to the county council each day such quantity of water as the county council may from time to time require for use (whether for supply by themselves or for supply in bulk to any local authority) in any part of the administrative county of the east riding not comprised in the limits within which the Corporation are for the time being authorised to supply water and not being a district to the local authority of which the Corporation are at the passing of this Act supplying water in bulk :

Provided that the Corporation shall not be required to supply water to the county council under the provisions of this section—

(a) to an extent exceeding (together with any quantity of water supplied by the Corporation to the council of any urban district (not being a borough) or rural district in the said administrative county (other than the urban district of Great Driffield) and not comprised in the limits within which the Corporation are for the time being authorised to supply water and not being a council to

whom the Corporation are supplying water at the date of the passing of this Act)— A.D. 1930.
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(i) on any one day one million two hundred thousand gallons; or

(ii) in any year a daily average quantity of one million gallons; or

(b) at any time after the Corporation shall have discontinued the use of the pumping station as a source of supply :

(2) The water to be supplied to the county council under the provisions of this section shall at their option be supplied either—

(a) wholly at the pumping station; or

(b) wholly at such point or points on Waterwork No. 2 by this Act authorised as the county council may reasonably require; or

(c) partly at the pumping station and partly at any such point or points as last aforesaid ;

and at such pressure or pressures as the county council may reasonably require and the county council shall in any notice given by them under subsection (1) of this section specify the point or points and the pressure or pressures at which they require the supply to be given and the maximum daily quantity or quantities required for a period of not less than five years at such point or each of such points :

Provided that the county council may at any time by notice in writing given in accordance with the provisions of subsection (1) of this section vary the point or points or pressure or pressures so specified or (subject to the provisions of subsection (1) of this section) increase the maximum daily quantity or quantities so specified :

(3) (a) For water supplied at the pumping station at the pressure required for delivering water into Waterwork No. 3 by this Act authorised (in this section referred to as “normal pressure”) the county council shall pay to the Corporation at the rate of such sum per thousand gallons as

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shall be equal to the prime cost to the Corporation per thousand gallons of water pumped for supply from the pumping station at normal pressure together with the addition of a sum equal to ten per centum of the said prime cost in respect of establishment charges;

(b) The said prime cost in respect of any period shall be ascertained by dividing the total expenditure of the Corporation during such period on revenue account (inclusive of loan and interest charges working expenses cost of maintenance provision for renewal or replacement contributions to the reserve fund and rates and taxes but not establishment charges) so far as such expenditure is incurred on or in connection with the pumping station by the quantity of water pumped from the pumping station for supply (but not including any water pumped by the Corporation from the pumping station for the purpose of compensation under the provisions of this Act) during such period;

(c) Provided that for the purposes of this subsection the quantity pumped from the pumping station for supply during any period shall be deemed to be not less than four million gallons per diem on the average :

- (4) Sums expended by the Corporation in respect of the purchase of fishing or water rights the payment of compensation the cost of deepening wells the installation or alteration of pumps and of affording supplies of water to make good diminution of local water supplies or otherwise under the provisions of this Act in consequence of the pumping station shall for the purposes of subsection (3) of this section be deemed to be expenditure incurred on or in connection therewith but any rents or payments received on account of such fishing or water rights or of such supplies of water shall be deducted from such expenditure and in the case of any such expenditure properly chargeable to capital account the sum to be taken into account for the purposes of the said subsection (3) shall be a sum to be agreed between the Corporation and the county

council or determined by arbitration as representing the interest and loan charges on a loan of the corresponding amount raised by the Corporation : A.D. 1930.

- (5) For water supplied at any point other than at the pumping station there shall be added to the price per thousand gallons calculated in accordance with subsections (3) and (4) of this section such a sum in respect of the user of the mains or pipe lines of the Corporation between the pumping station and the point or points of supply as may be agreed or failing agreement determined by arbitration having regard to the maximum requirements of the county council for the time being and the purpose for which the said mains or pipe lines were laid by the Corporation :
- (6) If the county council shall require any of the water to be supplied to them at a greater pressure than the normal pressure the Corporation shall provide plant and machinery to afford the greater pressure and in addition to the payments under subsection (3) of this section the county council shall pay to the Corporation the costs and charges of providing operating and maintaining such plant and machinery and the county council shall also unless otherwise agreed provide a reservoir at the necessary elevation having a capacity of not less than the maximum daily quantity of water required to be supplied at such greater pressure and a main thereto from the point of supply of adequate size to convey such quantity to the reservoir in eight hours :

Provided that the Corporation shall not be under any obligation to provide or construct works for the purposes of this subsection on land other than their own property for the time being or to operate such works at a greater distance than one hundred yards from any of their existing mains :

- (7) The county council shall not be entitled to demand a supply at any point other than at the pumping station exceeding in quantity that

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which the mains or pipe lines for the time being existing are adequate to provide having regard to the purposes for which such mains or pipe lines have been constructed :

- (8) (a) The Corporation shall provide and maintain in proper repair and if necessary renew from time to time at the pumping station and elsewhere as may be necessary meters in suitable chambers or buildings to measure the quantity of water obtained from the pumping station and supplied therefrom for various purposes and the cost of providing maintaining and renewing such meters shall be a cost incurred on or in connection with the pumping station ;

(b) The Corporation shall further provide and maintain and if necessary renew from time to time meters and meter chambers or houses for measuring the quantities of water supplied to the county council under this section and the county council shall pay to the Corporation such annual rent for such meters and meter chambers or houses as may be agreed or determined by arbitration but not exceeding fifteen per centum of the cost of providing and installing the same ;

(c) the meters shall be of a type to be mutually agreed or failing agreement determined by arbitration ;

(d) The county council shall be at liberty at all reasonable times after they have commenced to take a supply of water from the Corporation and after giving reasonable notice in writing to the Corporation by their servants or agents to open up and inspect the said meters and to test the accuracy thereof and to inspect and take copies of the meter records ;

(e) The register of the said meters shall be prima facie evidence of the quantities of water obtained from the pumping station or supplied therefrom and of the quantities of water supplied to the county council ;

(f) If at any time any of the said meters shall be found to be measuring inaccurately or to be out

of repair the Corporation shall forthwith adjust or repair such meter or remove and replace the same and during such period as any meter shall be found to have measured inaccurately or shall have been temporarily removed and not replaced by another meter the quantity of water shall be deemed to be the quantity supplied or registered during the corresponding period of the previous year with such addition or deduction in respect of increase or decrease of the quantity due to altered conditions as may be agreed or determined by arbitration : A.D. 1930.

- (9) The county council by their authorised representatives shall at all reasonable times and after giving reasonable notice in writing be entitled to inspect and take copies of or extracts from the accounts relating to the pumping station and all other necessary books or documents of the Corporation for the purpose of ascertaining the prime cost of the water and making any calculations for the purposes of this section :
- (10) All accounts for water supplied under this section shall be rendered quarterly by the Corporation to the county council within twenty-one days after the last days of June September December and March and shall (except in the case of a bona fide dispute as to the amount payable) be discharged by the county council within one month of the receipt thereof ;

The price per thousand gallons in such accounts during the first year after the commencement of any supply shall be based on the estimated prime cost and in subsequent years on the ascertained prime cost for the preceding year :

- (11) On or before the first day of June in each year the prime cost of the water for the year ended on the previous thirty-first day of March shall be ascertained and the amount payable for water supplied to the county council during such year determined The difference between such amount and the sum then already paid by the county council for such year shall be added or deducted (as the case may be) to or

A.D. 1930. from the next payment becoming due from the county council to the Corporation :

- (12) Notwithstanding anything contained in this section if at any time not later than two years after the Corporation have commenced to supply water to the county council the county council by notice in writing addressed to the Corporation contend that the price per one thousand gallons for the time being charged or proposed to be charged by the Corporation for the supply of water to them under the provisions of this section is greater than the cost per one thousand gallons which would have been incurred by the county council in obtaining such a supply if this Act had not been passed and claim that the price so charged or proposed to be charged should consequently be reduced then if the county council and the Corporation are unable to agree upon such price either party shall be entitled at any time after the expiration of three months from the date of the delivery of such notice to require that the questions—

(a) whether the contention of the county council as contained in the notice given by them as aforesaid is correct; and

(b) in the event of such contention being found to be correct whether and (if so) to what extent the price per one thousand gallons charged or proposed to be charged by the Corporation shall be reduced shall be referred to arbitration;

In any agreement or award under this subsection provision may be made for a periodical revision (but not more frequently than once in every five years) of the price per one thousand gallons payable pursuant to such agreement or award:

- (13) In the event of the water obtainable from the pumping station and other sources of supply of the Corporation being insufficient to meet the full requirements of the Corporation and the county council the deficiency shall be shared

between the Corporation and the county council in proportion to their respective requirements : A.D. 1930.

- (14) The county council shall not except with the consent of the Corporation supply for use within the boroughs of Beverley or Bridlington any water supplied to them by the Corporation :
- (15) The Corporation shall not be liable for any damage loss or expense caused by any failure in the supply of water to the county council if such failure shall be occasioned by frost unusual drought strikes or any cause beyond the control of the Corporation or during any time when the works at the pumping station shall be undergoing necessary repairs or renewals :
- (16) Any dispute question or difference between the Corporation and the county council under this section shall be referred to and determined by a single arbitrator to be agreed upon between the Corporation and the county council or failing such agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such reference and determination.

32. Notwithstanding anything in this Act contained the following provisions for the protection of the London and North Eastern Railway Company (in this section called "the company") shall unless otherwise agreed between the Corporation and the company apply and have effect (that is to say) :—

- (1) If it shall be proved that the pumping by the Corporation at the well and pumping station (Waterwork No. 1) by this Act authorised has caused any appreciable diminution of the supply of water obtainable prior to the date of the passing of this Act at any existing wells belonging to the company which are in operation or use at the said date and continue to be an effective source of supply and are situate within a distance of two miles from the said pumping station the Corporation shall upon the written request of

For protec-
tion of
existing
wells of
London
and North
Eastern
Railway
Company.

A.D. 1930.
—

the company afford (or arrange that there shall be afforded) to them a supply of water equal to the amount of such diminution as so proved at such cost or rate (if any) as that the total cost to the company of obtaining their full supply shall be the same after as before the occurrence of such diminution and upon such other terms as may be agreed or failing agreement may be settled by arbitration as hereinafter provided :

Provided that the Corporation shall not be liable for any temporary failure to afford such supply which is due to frost unusual drought or other unavoidable cause or accident :

- (2) For the purpose of affording a supply of water under this section the Corporation may supply water beyond their limits of supply and carry out all works necessary for that purpose but in respect of any such supply within the limits for the time being of the Driffeld Water Company other than the village of Nafferton the exercise of the powers of this subsection shall be subject to the consent of the said company :
- (3) The Corporation may if they think fit in lieu of making good the diminution of the supply from any such well deepen the affected well or boring or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the company shall without making any charge therefor give the Corporation their officers and servants access and every facility for carrying out such deepening borings or headings :
- (4) If the Corporation do not afford a supply equal to the diminution as aforesaid they shall make compensation in money to the company for such diminution the amount of such compensation to be settled in case of difference by arbitration as hereinafter provided :
- (5) The Corporation shall not be liable in respect of any claim made by the company under this section if they shall have failed to afford to the officers servants or other representatives of the Corporation at all reasonable times after the passing of this Act access to the well or boring

in respect of which the claim is made for the purpose of ascertaining particulars thereof and the levels of the water therein : A.D. 1930.
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- (6) Any question or dispute arising under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers :
- (7) The provisions of section 28 (For further protection of North Eastern Railway Company) of the Act of 1911 shall extend and apply to Waterwork No. 2 by this Act authorised as if that section had been expressly inserted in this Act.

PART V.

INFECTIOUS DISEASE AND SANITARY MATTERS.

33. For the purposes of the sections of this Act of which the marginal notes are “ Parents to notify infectious disease ” “ Power to close Sunday schools and exclude children from entertainments ” and “ Restriction on attendance of children at Sunday schools and places of assembly ” respectively the expression “ infectious disease ” includes measles German measles whooping cough chicken pox scabies ringworm and influenza in addition to the diseases referred to in the section of this Act of which the marginal note is “ Interpretation.”

Definition for purposes of this Part of Act.

34.—(1) Any person being a parent or having the care or charge of a child attending at a school in the city who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

Parents to notify infectious disease.

In any proceedings under this section a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

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(2) For the purpose of this section the expression "school" shall include a Sunday school.

Power to
close
Sunday
schools and
exclude
children
from enter-
tainments.

35.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction
on attend-
ance of
children at
Sunday
schools and
places of
assembly.

36.—(1) No person of or exceeding the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof within the city which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly without having procured from the medical officer or school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Amendment
of section 90
of Act of
1903.

37. Section 90 of the Act of 1903 shall be read and have effect as if the words "or deputy or assistant medical officer" were inserted after the words "the medical officer" wherever the same occur.

38.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a dangerous infectious disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease :

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Entry into premises in case of dangerous infectious disease.

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

(2) For the purposes of this section the expression “ dangerous infectious disease ” includes dangerous infectious disease as defined in section 60 of the Public Health Act 1925 and includes chicken pox so long as that disease is compulsorily notifiable in the city.

(3) Any person who obstructs the medical officer in the exercise of his power under this section shall in addition to any other punishment to which he may be subject be liable to a penalty not exceeding five pounds.

39.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within a time to be fixed in the notice.

Disinfection in case of tuberculosis.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the

A.D. 1930. — building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer :

Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten in the forenoon and six in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner or person in possession of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the person from whom they were taken free of charge.

(3) If any person sustains any damage by reason of the negligent exercise by the Corporation of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

[20 & 21 GEO. 5.] *Kingston upon Hull* [Ch. clxxv.]
Corporation Act, 1930.

(4) The provisions of this section shall apply in relation to the cleansing and disinfecting of any boat or vessel within the city used for human habitation in the same manner as they apply to the cleansing and disinfecting of buildings so used. A.D. 1930.
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40. The Corporation may provide and supply (with or without charge therefor) to any medical practitioner medicines appliances and requisites for the care and surgical treatment of sick persons or may contract with any person to provide and supply the same but the powers conferred upon the Corporation by this subsection shall not extend to the supply of medicines appliances and requisites for the care and surgical treatment of persons insured under the National Health Insurance Act 1924 so long as they can be supplied under that Act : Power to supply medicines &c.

Provided that the medicines appliances and requisites to be supplied under this section shall include only those in respect of which when supplied by a duly qualified medical practitioner under the National Health Insurance Act 1924 payment is made on the basis of the drug tariff for the time being in force in the city.

41.—(1) The Corporation shall have power to make reasonable subscriptions or donations to any trustees or other body constituted for the purpose of holding supplying or administering radium and on making any subscription or donation under this section the Corporation may impose such terms and conditions relative to the supply administering and use of radium as they may think fit. Provision of radium.

(2) Any expenditure under this section shall not exceed in any one year an amount equal to that which would be produced by a rate of one penny in the pound on the property liable to be assessed for the purpose of the general district rate.

42. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household in such manner as to be likely to spread the infectious disease he shall be liable to a penalty not exceeding forty shillings. Prohibition on infected person carrying on business.

A.D. 1930.

Registra-
tion of
premises
used for
manufac-
ture &c. of
potted
meats and
ice-cream.

43.—(1) No premises shall be used for—

(a) the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale; or

(b) the manufacture for sale or sale of ice-cream or other similar commodity;

unless such premises are registered by the Corporation in a register indicating the purpose for which the premises may be used and any person who offends against the provisions of this subsection or uses any premises for a purpose for which they are not registered shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The Corporation may refuse to register any such premises or (after giving one month's notice in writing to the person in whose name any such premises are registered) revoke the registration of such premises upon the ground that the premises are not suitable to be used for the purposes aforesaid :

Provided that before refusing or revoking such registration the Corporation shall serve upon the applicant for registration or the person in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the premises.

(b) If the Corporation should refuse to register or should revoke the registration of any such premises they shall deliver to the person applying for such registration or in whose name the premises are registered a statement in writing of the ground or grounds upon which such refusal is based Notice of the right to appeal next hereinafter mentioned shall be endorsed on every such notice.

(c) Any person aggrieved by any such refusal may appeal to a court of summary jurisdiction provided that such appeal be made within fourteen days from the date of a refusal to register or of the notice of a refusal to retain.

(d) Any person so appealing shall give or cause to be given written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and

the costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct. A.D. 1930. —

(e) On any such appeal the court may by order confirm the refusal or direct the Corporation to register the premises or to retain them upon the register and the Corporation shall comply with any such direction.

(3) The provisions of this section shall have no application to any premises occupied as a factory or workshop respecting which notice is required by subsection (1) of section 127 of the Factory and Workshop Act 1901 to be given and shall not in any way affect the operation of that Act.

(4) The provisions of this section shall not apply to any premises used as a hotel or restaurant or railway refreshment rooms.

(5) This section shall not apply to or affect any premises licensed for stage plays or for music and dancing or for cinematograph entertainments.

(6) The provisions of this section shall come into force on the first day of January nineteen hundred and thirty-one and the Corporation shall cause public notice to be given of the provisions of this section by advertisement published once in each of three successive weeks in at least two newspapers published or circulating in the city in the months of August and September or one of them immediately preceding the date when such provisions shall become operative.

44.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is. Medical practitioners to notify cases of food poisoning.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give notice who fails to give the same in accordance with this

A.D. 1930. — section shall be liable to a penalty not exceeding forty shillings.

Prohibition
of tents
vans &c.

45.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the city without the previous approval of the Corporation.

(b) It shall not be lawful for any person without the previous approval of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

(c) Land furnished in compliance with this subsection with a separate supply of water shall be deemed to be a house for the purposes of the provisions relating to the supply of water for domestic purposes.

(2) (a) Any person aggrieved by the withholding by the Corporation of any approval under the provisions of this section may within fourteen days from the date of the decision of the Corporation appeal to a court of summary jurisdiction.

(b) Any person so appealing shall give or cause to be given written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order in the matter of the appeal as the court may think fit and to award costs.

(3) This section shall not apply to—

(a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months; or

(b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

[20 & 21 GEO. 5.] *Kingston upon Hull* [Ch. clxxv.]
Corporation Act, 1930.

46.—(1) The Corporation may by notice require the owner or occupier of any premises within the time specified in the notice not being less than twenty-eight days—

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Power to
require
provision
of ashbins.

(a) to provide portable receptacles for refuse of such number size and material as may be prescribed by the notice in substitution for any ashpit or other fixed or moveable receptacle for refuse which is in use at the date of the notice; and

(b) to remove or to fill in to the satisfaction of the Corporation any fixed ashpit for which a portable receptacle or receptacles will be substituted and to remove any moveable receptacle for which a portable receptacle or receptacles will be substituted.

(2) Where by a notice under subsection (1) of this section the Corporation require a portable receptacle for refuse to be provided in substitution for an ashpit or other receptacle for refuse which is in use at the date of the notice the Corporation shall contribute towards the reasonable cost approved by them of the receptacle such sum (not being less than one-half of the cost thereof) as they may consider just and proper according to the circumstances and the remainder of the cost shall be borne by the person to whom the notice was addressed and the Corporation may if they think fit bear the whole of the cost of providing the substituted receptacle and shall subject as hereinafter provided pay the whole of the cost of providing the receptacle and of removing or filling in the fixed ashpit where the existing receptacle is reasonably serviceable :

Provided that if the medical officer or any sanitary inspector of the Corporation shall have certified that the existing receptacle for refuse is a nuisance or injurious to health or that an existing portable receptacle is worn out and unfit for use the whole of the cost of the substituted receptacle shall be borne by the person to whom the notice was addressed.

(3) If any notice under subsection (1) of this section is not complied with or is not fully complied with the Corporation may after the expiration of the time specified in such notice provide the required receptacles and do any work thereby required to be done which has not been done by the owner or occupier and may recover from the owner or (if there be more than one owner)

A.D. 1930. — from the owners in such proportions as shall be determined by the Corporation the expenses incurred by them in so doing less any part of the said expenses which is to be borne by the Corporation under subsection (2) of this section or may by order declare the expenses apportioned as aforesaid to be private improvement expenses recoverable in manner provided by the Public Health Act 1875.

(4) (a) Every owner or occupier by whom a receptacle for refuse has been provided in pursuance of a notice under this section shall maintain the receptacle in good order and condition and when necessary renew it.

(b) Any person who fails to comply with this subsection shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(5) Nothing in this section shall apply to any warehouse belonging to and occupied by a railway company from which the Corporation do not remove refuse.

(6) Nothing contained in this section shall restrict or prejudicially affect the powers of the Corporation under section 57 (Regulation dustbins) of the Act of 1903.

(7) The provisions of the said section 57 shall extend and apply to the owner of any premises used as a shop whether persons reside therein or not.

Restrictions
as to use of
ashbins &c.

47.—(1) No ashbin or other refuse container provided for the deposit of refuse for removal by or on behalf of the Corporation shall be used for any purpose other than the deposit of dust cold ashes or house refuse (not being of a liquid or partly liquid character).

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding ten shillings.

Nuisance
arising from
pigeons.

48. For the purpose of abating or mitigating any nuisance annoyance or damage caused by the congregation at any place in the city of house doves or pigeons having or believed by the Corporation to have no owner or of preventing or minimising any such nuisance annoyance or damage which might in the opinion of the Corporation be so caused the Corporation may notwithstanding anything in the Larceny Act 1861 or in any other Act seize and destroy or sell or otherwise dispose of or cause

to be seized and destroyed or sold or otherwise disposed of any such house doves or pigeons in excess of such number as the Corporation may consider reasonable and take such other steps as they may deem necessary for any such purpose : A.D. 1930.

Provided that the Corporation shall not in the exercise of the powers conferred by this section—

- (a) enter upon any building or land (other than a public highway) without the consent of the occupier or the authority body or person having the exclusive control and management of such building or land ; or
- (b) execute or do any work or thing affecting the structure of such building or the use of such land without the consent of the authority body or person in whom such building or land is vested ; or
- (c) knowingly destroy sell or otherwise dispose of or cause to be destroyed sold or otherwise disposed of any house dove or pigeon unless the Corporation have reason to believe that it has no owner.

49. The Corporation may make byelaws—

Byelaws as to private schools.

- (a) for securing the adequate heating lighting and ventilation of premises used as schools not maintained by the Corporation ; and
- (b) for securing the provision of adequate washing and closet accommodation for children attending such premises for the purposes of education and adequate facilities for drying the clothes of such children.

50.—(1) Public notice of the effect of the provisions of this Part of this Act (except section 43 thereof) shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two newspapers published or circulating in the city. Notice to be given of this Part of Act.

(2) Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

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PART VI.

FINANCE.

Power to
borrow.

51.—(1) The Corporation may (in addition to the other sums which they are authorised to raise) borrow or raise at interest for and in connection with the purposes mentioned in the first column of the following table any sums of money not exceeding in the whole the respective sums mentioned in the second column thereof and shall repay all moneys so borrowed within the respective periods mentioned in the third column thereof (namely) :—

1	2	3
Purposes.	Amount.	Period for repayment.
(a) The purchase of lands for the purposes of this Act.	£ 92,200	Sixty years from the date or dates of borrowing.
(b) The construction of the street improvements authorised by this Act.	8,380	Thirty years from the date or dates of borrowing.
(c) The execution of the powers of the section of this Act whereof the marginal note is "Power to develop lands."	200,000	Fifty years from the date or dates of borrowing.
(d) The construction of the waterworks authorised by this Act.	727,411	Fifty years from the date or dates of borrowing.
(e) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the purposes of this Act.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister.

Mode of
borrowing.

52.—(1) The Corporation may raise all or any of the moneys which they are authorised to borrow by the creation and issue of Hull Corporation redeemable stock in accordance with the provisions of the Hull

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Corporation Loans Act 1881 as amended by any subsequent Act or Order confirmed by Parliament or by any of the methods provided by the Local Loans Act 1875 or by mortgage : A.D. 1930.
—

Provided that the provisions of the Act of 1901 relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

(2) The contributions to the sums directed by the said Act of 1881 to be carried to the Hull Corporation loans fund in respect of interest on and redemption of stock shall be payable out of the funds and rates following (that is to say) :—

- (a) As to so much of the stock created and issued for the purpose (a) mentioned in the section of this Act whereof the marginal note is “ Power to borrow ” as is created for the purpose of raising money for the purchase of the land for the street works authorised by this Act and as to the stock created and issued for the purposes (b) (c) and (e) mentioned in that section out of the general rate fund and the general rate ;
- (b) As to so much of the stock created and issued for the purpose (a) mentioned in the said section as is created for the purpose of raising money for the purchase of land for the construction of the waterworks authorised by this Act and as to stock created and issued for the purpose (e) mentioned in that section out of the revenue of the water undertaking of the Corporation and the general rate fund and the general rate ;
- (c) As to stock created and issued in respect of moneys raised with the consent of the Minister out of such revenue fund or rate as may be prescribed by the Minister.

(3) In the case of any moneys raised under this Act by any of the methods provided by the Local Loans Act 1875 the local rate for the several purposes aforesaid shall be the revenue fund and rate out of which the contributions mentioned in subsection (2) of this section are payable.

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(4) In the case of moneys borrowed on mortgage for the several purposes aforesaid the Corporation may mortgage or charge the revenue fund and rate out of which the contributions specified in subsection (2) of this section would be payable if the moneys were raised by stock :

Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 152 (Power to use one form of mortgage for all purposes) of the Act of 1903.

Sinking
fund.

53.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the accumulations of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied

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by the Corporation towards the equal annual payments to the fund. A.D. 1930.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed :

Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

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(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) In this section—

“statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by

authority of any Act of Parliament passed A.D. 1930.
or to be passed;

“statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

PART VII.

MISCELLANEOUS PROVISIONS.

54. Subject to the provisions of this section the expressions “officer” and “servant” where used in the Local Government and other Officers’ Superannuation Act 1922 in its application within the city shall include the clerk to the justices of the city the collecting officer under the Affiliation Orders Act 1914 and persons in the permanent and whole time service of such clerk or officer for the purpose of such clerk or officer carrying out his duties as such clerk or officer respectively :

Extension
of Super-
annuation
Act to
justices’
clerk &c.

Provided that—

- (1) The said expressions shall not include the said clerk or officer or any person as aforesaid serving either of them at the passing of this Act except with the consent of such clerk officer or person (as the case may be) :
- (2) The powers of this section shall not come into operation except with the consent of the said justices or of the majority of them and of the Secretary of State and subject to such consent being given shall operate from the first day of April nineteen hundred and thirty-one :
- (3) The Secretary of State may by order make such modifications in the said Act as appear to him to be necessary or expedient for the purposes of this section.

A.D. 1930.

—
Provision
of enter-
tainments
and letting
of buildings.

55.—(1) The Corporation may provide or carry on suitable concerts entertainments exhibitions performances and amusements and make provision for the sale of programmes and refreshments in any public buildings halls or rooms belonging to them and may make such reasonable charges as they may think fit for admission thereto and the Corporation may let any such premises as aforesaid for the purposes of such concerts entertainments exhibitions performances or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit or upon the like terms and conditions they may lease any such premises for any term not exceeding twenty-one years :

Provided that any letting other than for a period of less than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable.

(2) Provided also that the following restrictions shall have effect with respect to any concert or other entertainment provided by the Corporation under this section (that is to say) :—

- (a) No stage play shall be performed;
- (b) The concert or other entertainment shall not include any performance in the nature of a variety entertainment as usually given at a music hall;
- (c) No cinematograph film other than a film illustrative of questions relating to health or disease or a film of a purely educational character shall be shown; and
- (d) No scenery theatrical costumes or scenic or theatrical accessories shall be used except when the concert or entertainment is given by amateurs or is of an educational or similar character.

(3) The Corporation may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions performances or amusements provided or carried on in pursuance of the provisions of this section.

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(4) Neither—

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- (a) the net amount of any payments or expenses made or incurred by the Corporation under the provisions of this section after deducting any moneys received by them under the provisions of this section; nor
- (b) the total amount of any payments or expenses made or incurred by the Corporation under the provisions of subsection (3) of section 56 (Further powers as to parks and pleasure grounds) of the Public Health Act 1925 and this section

shall in any one year exceed a sum equivalent to that which would be produced by a rate of twopence in the pound levied on property in the city assessable in that year to the general rate :

Provided that the limitation hereby imposed shall not apply to or in respect of any rate in excess of the rate of one penny in the pound which may be approved by the Minister under the provisions of the said subsection (3) of section 56 of the Public Health Act 1925.

56. The Corporation may continue and maintain the national kitchens provided by them under the National Kitchens Order 1918 together with such distributing depots as they may think proper and may continue to exercise the following powers which were conferred upon them under that order (namely) :—

Continuation of national kitchens.

- (a) They may sell (whether for consumption on or off the premises or to a person for purposes of distribution) food and drink prepared in the kitchen or proposed to be distributed; and
- (b) They may do such other acts and things as are necessary for or incidental to the due exercise of the above powers.

57.—(1) It shall not be necessary to furnish to the Corporation any plan of a building which is exempt from the provisions of the Acts or of the byelaws for the time being in force in the city except as provided in such byelaws.

Plan to be furnished in case of exempt buildings.

(2) Paragraph (1) of article IV of the Order relating to the city confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1893 is hereby repealed.

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Repeal of
 article II
 of Order of
 1883 and
 section 16
 of Act of
 1884.

58. Article II of the Order relating to the city confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1883 and section 16 (amending article II of the Kingston upon Hull Order 1883) of the Kingston upon Hull Corporation Water Act 1884 are hereby repealed.

Consents of
 Corporation
 to be in
 writing.

59. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

As to
 appeals.

60. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part V of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

General
 provisions
 as to
 byelaws.

61. Except where otherwise provided by this Act all byelaws from time to time made by the Corporation under the powers of this Act shall be made under and according to the provisions contained in sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority.

Incorpora-
 tion of
 sections
 from
 existing
 Acts.

62.—(1) The following sections of the Acts hereinafter mentioned shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say) :—

The Public Health Act 1875—

Section 265 (Protection of local authority and their officers from personal liability).

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Section 42 (Correction of errors &c. in deposited plans and book of reference);

Section 44 (Persons empowered by Lands Clauses Acts to sell lands may grant easements &c.);

Section 47 (Provision for payment to trustees);

Section 48 (Owners may be required to sell parts only of certain properties);

Section 54 (Protection of lenders from inquiry).

The Act of 1901—

Section 12 (Power to make subsidiary works);

Section 13 (Power to alter steps areas pipes &c.);

Section 15 (Temporary stoppage of streets);

Section 17 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works);

Section 23 (Power to retain sell &c. lands);

Section 24 (Proceeds of sale of surplus lands);

Section 48 (Provisions of Public Health Act as to mortgages);

Section 49 (Mode of payment off of money borrowed).

The Act of 1903—

Section 162 (Expenses may be declared private improvement expenses);

Section 172 (Informations by whom to be laid).

The Act of 1906—

Section 72 (Application of money borrowed);

Section 74 (Corporation not to regard trusts);

Section 76 (Appointment of receiver);

Section 78 (Expenses of execution of Act);

Section 81 (Recovery of penalties);

Section 83 (Audit of accounts).

The Act of 1907—

Section 22 (Recovery of demands);

Section 23 (Saving for indictment &c.);

Section 24 (Powers of Act cumulative).

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The Act of 1911—

- Section 12 (Subsidiary works);
- Section 20 (Application of Act of 1901);
- Section 21 (Temporary discharge of water into streams);
- Section 22 (Application of Waterworks Clauses Act 1847 to conduits discharge pipes telephones &c.);
- Section 23 (For protection of Postmaster-General).

The Act of 1922—

- Section 10 (Extinction of private rights of way);
- Section 23 (For protection of North Eastern Railway Company); and
- Section 31 (Inquiries by Minister of Health).

(2) Provided that—

- (a) in the application of section 48 of the Kingston upon Hull Corporation Act 1897 the premises described in the schedule to this Act shall be deemed to be referred to instead of the premises described in the Third Schedule to that Act;
- (b) in the exercise of the powers of section 23 of the said Act of 1901 as applied to this Act the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any lands or interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained;
- (c) nothing in the said section 23 shall release the Corporation or any person purchasing or acquiring any lands from them under that section as applied to this Act from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may

hereafter be conveyed or leased to or otherwise
 acquired by the Corporation or any person
 from or through whom the Corporation may
 have derived or may hereafter derive title
 to the same but all such rents covenants
 restrictions reservations terms and conditions
 shall remain and be of as full force and effect
 and may be recovered exercised enjoyed and
 enforced in like manner and to the same
 extent as if this Act had not been passed ;

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- (d) the Corporation shall not under any provision incorporated by this section alter or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the said Act.

Nothing contained in sections 12 and 15 of the Act of 1901 shall authorise the Corporation in carrying out any works authorised by those sections or in exercising any of the powers of those sections unreasonably to obstruct or interfere with or render less convenient the access to or exit from any station or depot of the London and North Eastern Railway Company or any street or road belonging to such company.

63.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

Works
below
high-water
mark to be
subject to
approval
of Board of
Trade.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

A.D. 1930.

—
Crown
rights.

64. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
Act.

65. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of the general rate fund and the general rate or out of money to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act.

A.D. 1930.

LIST OF PROPERTIES OF WHICH PORTIONS ONLY MAY BE REQUIRED BY THE CORPORATION.

Work.	Area.	Numbers on deposited plans.
Work No. 1	- City - - - - -	2 24 27 32.
Work No. 3	- City - - - - -	41 42 43 44 45 46 47 48 49 50.
Work No. 4	- City - - - - -	54.
Work No. 5	- City - - - - -	56 60 64 65 66 67 68 69 70 71 72 73 74.
Work No. 6	- City - - - - -	76 77 78 79 81 82 83.
	Parish of Preston - - -	84 85.
Work No. 7	- Parish of Aike - - -	87.
	Parish of Leven - - -	88 89 90 91 92 93 94 95.
Waterwork No. 1	Parish of Elmswell - - -	99 102 104 105 106.
Waterwork No. 2	Parish of Elmswell - - -	121 122.
	Parish of Sunderlandwick -	123 124 125 127 128 129 130 131 132.
	Parish of Hutton Cranswick	133 134 135.
	Parish of Watton - - -	138 139 140.
	Parish of Kilnwick - - -	141 143 144 145.
	Parish of Lockington - -	148.
	Parish of Scarborough -	150 152 153 154 155.
	Parish of Leconfield - -	157 158.
	Parish of Cherry Burton -	161 162 163 164 165 167.

